

HOUSE BILL 971

By Parkinson

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 10, is amended by adding the following as a new section:

(a) An LEA or public charter school may create a physical education through community service program by partnering with a community organization to provide students in grades nine through twelve (9-12) with the opportunity to earn one-half (1/2) credit in physical education by completing yardwork projects for older persons and persons with disabilities within the community served by the LEA or public charter school. An LEA or public charter school may allow a student to participate in the program for no more than one (1) class period per school day.

(b)

(1) In order to earn one-half (1/2) credit in physical education pursuant to subsection (a), the number of yardwork hours completed by the student, which must be overseen and documented by a community service partner, must be no less than the number of instructional hours required for a student to receive one-half (1/2) credit in a traditional physical education course, as determined by the state board of education.

(2) One-half (1/2) credit in physical education earned by a student pursuant to this section may be counted toward the graduation requirements established by the state board pursuant to § 49-6-6001(a).

(c) An LEA or public charter school that creates a physical education through community service program pursuant to this section shall:

(1) Notify students in grades nine through twelve (9-12) of the opportunity to earn one-half (1/2) credit in physical education by completing yardwork projects for older persons and persons with disabilities within the community served by the LEA or public charter school;

(2) Ensure that the parent or guardian of a student seeking to participate in the program has signed a written consent form authorizing their student to participate in the program before the student participates in any yardwork projects through, and for purposes of, the program;

(3) Ensure that students are supervised at all times while providing yardwork services for older persons and persons with disabilities through the LEA's or public charter school's program;

(4) Establish the parties responsible for transporting students to and from the location at which students are providing yardwork services and notify parents and guardians of the parties responsible for transporting their students; and

(5) Ensure that all community service partners who will have contact with students or who will be working in close proximity to students through the program submit to, and complete, an investigation under § 49-5-413.

(d) A community service organization that partners with an LEA or public charter school for purposes of a physical education through community service program shall maintain attendance records and records documenting the hours of yardwork services completed by each participating student and make the records available to the LEA or public charter school, as applicable.

(e) A community service organization that partners with an LEA or public charter school for purposes of the LEA's or public charter school's physical education through community service program assumes all liability for a student while the student providing yardwork services in the community, but off the grounds of the student's school.

(f) The time within which a student leaves school in order to provide yardwork services in the community for purposes of the program must align with the class schedule adopted by the LEA or public charter school for the school day.

(g) A student who participates in the program must be credited with time spent in the program in the same manner as if the student were attending school, and the time spent in the program must be calculated as part of the school day.

(h) Each LEA and public charter school that creates a physical education through community service program pursuant to this section shall annually:

(1) Collect surveys from students who participated in the program, parents or guardians of students who participated in the program, community service partners participating in the program, and the older persons or persons with disabilities who received yardwork assistance through the program; and

(2) Submit a report to the department of education on:

(A) The number of students who participated in the program;

(B) Satisfaction of the program's participants as determined by the surveys collected pursuant to subdivision (h)(1);

(C) The type, length, and complexity of the yardwork or community service projects students completed through the program; and

(D) The outcomes of the program.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.